of India without complying with the norms and requirements of the consultation process are not binding on the government.

The 99th Constitutional Amendment Act of 2014 and the National Judicial Appointments Commission Act of 2014 have replaced the collegium system of appointing judges to the Supreme Court and High Courts with a new body called the National Judicial Appointments Commission (NJAC). However, in 2015, the Supreme Court has declared both the 99th Constitutional Amendment as well as the NJAC Act as unconstitutional and void. Consequently, the earlier collegium system became operative again. This verdict was delivered by the Supreme Court in the *Fourth Judges* case[2a] (2015). The court opined that the new system (i.e., NJAC) would affect the independence of the judiciary.

**Appointment of Chief Justice** From 1950 to 1973, the practice has been to appoint the seniormost judge of the Supreme Court as the chief justice of India. This established convention was violated in 1973 when A.N. Ray was appointed as the Chief Justice of India by superseding three senior judges.[3] Again in 1977, M.U. Beg was appointed as the chief justice of India by superseding the then senior-most judge.[4] This discretion of the government was curtailed by the Supreme Court in the *Second Judges* case (1993), in which the Supreme Court ruled that the seniormost judge of the Supreme Court should alone be appointed to the office of the chief justice of India.

**QUALIFICATIONS, OATH AND SALARIES**

**Qualifications of Judges** A person to be appointed as a judge of the Supreme Court should have the following qualifications:

1. He/she should be a citizen of India.

2. (a) He/she should have been a judge of a High Court (or high courts in succession) for five years; or (b) He/she should have been an advocate of a High Court (or High Courts in succession) for ten years; or
   (c) He/she should be a distinguished jurist in the opinion of the President.

From the above, it is clear that the Constitution has not prescribed a minimum age for appointment as a judge of the Supreme Court.

**Oath or Affirmation** A person appointed as a judge of the Supreme Court, before entering upon his/her Office, has to make and subscribe an oath or affirmation before the President, or some person appointed by him/her for this purpose. In his/her oath, a judge of the Supreme Court swears:

1. to bear true faith and allegiance to the Constitution of India;

2. to uphold the sovereignty and integrity of India;

3. to duly and faithfully and to the best of his/her ability, knowledge and judgement perform the duties of the Office without fear or favour, affection or ill-will; and

4. to uphold the Constitution and the laws.

**Salaries and Allowances** The salaries, allowances, privileges, leave and pension of the judges of the Supreme Court are determined from time to time by the Parliament. They cannot be varied to their disadvantage after their appointment except during a financial emergency. In 2018, the salary of the chief justice was increased from ₹1 lakh to ₹2.80 lakh per month and that of a judge from ₹90,000 to